



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35943737

Date: JAN. 16, 2025

Appeal of Newark, New Jersey Field Office Decision

Form N-600, Application for Certificate of Citizenship

The Applicant seeks a Certificate of Citizenship to reflect that she derived citizenship from her U.S. citizen father under section 320 of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1431. Generally, to establish derivative U.S. citizenship under that section of the Act, a person who was born abroad must satisfy certain conditions before turning 18 years of age.

The Director of the Newark, New Jersey Field Office denied the application, concluding that the record did not establish that the Applicant's father naturalized before she turned 18. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

Upon de novo review, we will withdraw the Director's decision and remand the matter for entry of a new decision consistent with the following analysis.

The Applicant was born abroad to two unmarried non-citizen parents in 1998. She entered the United States in immigrant classification IR-2 as the child of a U.S. citizen in February 2009 and began living with her U.S. citizen father in New Jersey. At issue on appeal is the date that the Applicant's father naturalized.

To determine whether the Applicant derived U.S. citizenship from her father we apply "the law in effect at [the] time the critical events giving rise to eligibility occurred." *Minasyan v. Gonzales*, 401 F.3d 1069, 1075 (9th Cir. 2005). Because the Applicant became a lawful permanent resident in 2009, we consider her derivative citizenship claim under section 320 of the Act, as in effect since 2001.

Section 320 of the Act provides, in pertinent part, that:

- (a) A child born outside of the United States automatically becomes a citizen of the United States when all of the following conditions have been fulfilled:
 - (1) At least one parent of the child is a citizen of the United States, whether by birth or naturalization.
 - (2) The child is under the age of eighteen years.

- (3) The child is residing in the United States in the legal and physical custody of the citizen parent pursuant to a lawful admission for permanent residence.

As the Applicant was born abroad, she is presumed to be a noncitizen and bears the burden of establishing her claim to U.S. citizenship by a preponderance of credible evidence. *Matter of Baires-Larios*, 24 I&N Dec. 467, 468 (BIA 2008). Under the preponderance of the evidence standard, the Applicant must demonstrate that her claim is “probably true,” or “more likely than not.” *Matter of Chawathe*, 25 I&N Dec. 369, 376 (AAO 2010).

The Director concluded that the Applicant’s father naturalized in June 2018, after the Applicant had attained 18 years. On appeal, the Applicant states that her father naturalized in May 2006 but that he lost his original Naturalization Certificate. The Applicant states that her father requested a new Naturalization Certificate that was issued in June 2018. A review of the Naturalization Certificate and USCIS systems confirms that the Applicant’s father naturalized in May 2006, prior to the Applicant’s 18th birthday.

As the sole reason for the denial of the Applicant’s request for a Certificate of Citizenship has been overcome, we will return the matter to the Director to determine whether the Applicant has satisfied the remaining conditions for derivative citizenship under section 320 of the Act and to enter a new decision, accordingly.

ORDER: The Director's decision is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.